Constitution. What I am sorry about is that the provisions taken from the Government of India Act, 1935, relate mostly to the details of administration".[14]

3. Un-Indian or Anti-Indian

According to the critics, the Indian Constitution is 'un-Indian' or 'anti-Indian' because it does not reflect the political traditions and the spirit of India. They said that the foreign nature of the Constitution makes it unsuitable to the Indian situation or unworkable in India. In this context, K. Hanumanthaiya, a member of the Constituent Assembly, commented: "We wanted the music of Veena or Sitar, but here we have the music of an English band. That was because our Constitution-makers were educated that way".[15] Similarly, Lokanath Misra, another member of the Constituent Assembly, criticized the Constitution as a "slavish imitation of the west, much more – a slavish surrender to the west".[16] Further, Lakshminarayan Sahu, also a member of the Constituent Assembly, observed: "The ideals on which this draft Constitution is framed have no manifest relation to the fundamental spirit of India. This Constitution would not prove suitable and would break down soon after being brought into operation".[17]

4. An Un-Gandhian Constitution

According to the critics, the Indian Constitution is un-Gandhian because it does not contain the philosophy and ideals of Mahatma Gandhi, fondly known as 'Bapu' or 'Father of the Nation' in India. They opined that the Constitution should have been raised and built upon village panchayats and district panchayats. In this context, the same member of the Constituent Assembly, K. Hanumanthaiya, said: "That is exactly the kind of Constitution Mahatma Gandhi did not want and did not envisage".[18] T. Prakasam, another member of the Constituent Assembly, attributed this lapse to Ambedkar's non-participation in the Gandhian movement and the antagonism towards the Gandhian ideas.[19]

5. Elephantine Size

The critics stated that the Indian Constitution is too bulky and too detailed and contains some unnecessary elements. Sir Ivor Jennings, a British Constitutionalist, observed that the provisions borrowed were not always well-selected and that the constitution, generally speaking, was too long and complicated.[20]

In this context, H.V. Kamath, a member of the Constituent Assembly, commented: "The emblem and the crest that we have selected for our assembly is an elephant. It is perhaps in consonance with that our constitution too is the bulkiest that the world has produced".[21] He also said: "I am sure, the House does not agree that we should make the Constitution an elephantine one".[22]

6. Paradise of the Lawyers

According to the critics, the Indian Constitution is too legalistic and very complicated. They opined that the legal language and phraseology adopted in the constitution makes it a complex document. The same Sir Ivor Jennings called it a "lawyer's paradise".

In this context, H.K. Maheswari, a member of the Constituent Assembly, observed: "The draft tends to make people more litigious, more inclined to go to law courts, less truthful and less likely to follow the methods of truth and non-violence. If I may say so, the draft is really a lawyer's paradise. It opens up vast avenues of litigation and will give our able and ingenious lawyers plenty of work to do".[23]